

24LBCV01223 24LBCV01223

County: los-angeles

Division: Civil Law and Motion

Department: S27

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1. Standard

on Motion to Tax Costs

The parties disagree concerning who has the burden on a motion to tax costs.

Plaintiff argues the memorandum itself meets the initial burden, and the party challenging the costs has the burden to show they are unreasonable. Defendant argues the memorandum constitutes only prima facie evidence that the costs were incurred, but once the moving party challenges the costs, the burden shifts to the opposing party to show they were both actually AND reasonably incurred.

If the items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. *Ladas v. California State Auto. Ass'n* (1993) 19 CA4th 761, 774-776. On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. *Id.* at 774-776.

As a practical matter, this means items the trial court can readily verify, such as filing fees, are sufficiently established merely by placing them on the costs bill. Items that the trial court cannot readily verify, such as travel expenses, once challenged, must be justified by the party seeking to have those costs awarded.

Plaintiff notes that, in a *Song-Beverly* case, Civil Code §1794(d) permits a prevailing party to recover "expenses," which is broader than the costs expressly contemplated by

§1033.5. She argues “reasonably necessary” is the standard under §1033.5, but not under §1794(d), which is broader. The Court disagrees. §1033.5(a)(16) requires the Court to award “Any other item that is required to be awarded to the prevailing party pursuant to statute as an incident to prevailing in the action.” §1033.5(c)(2) and (3), however, make clear that all allowable costs must be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation and must be reasonable in amount, respectively. Thus, §1033.5(c) modifies §1033.5(a), including the portion of §1033.5(a) that permits a Song-Beverly prevailing party to recover “expenses.”

2. Expert

Witness Fees

Plaintiff seeks to recover \$6510.45 in expert costs. Defendant challenges this cost. Because the Court cannot independently verify whether the cost was actually or reasonably incurred, Plaintiff has the burden to so establish.

Plaintiff, in opposition to the motion, provides the Declaration of Emily Rader, ¶13, and Exhibit 1 thereto. Rader declares the invoice for the expert fees was inadvertently left off the memorandum of costs and is attached as Exhibit 1. Exhibit 1 contains a line item breakdown of each task performed, the hourly rate, and the total fee charged for the task. Defendant argues the declaration and exhibit are not sufficient to show the fees were reasonable. The Court finds the invoice specifies the tasks and each appear, on their face, to be reasonable, such that the burden is met and this item is allowed.

3. “Other”

Costs

Plaintiff’s memorandum seeks to recover \$25,715.72 in “other” costs. These include legal services charges, court reporter fees, and attorney travel expenses, all of which Defendant challenges.

a. Legal

Services Charges

Plaintiff seeks to recover \$4681.78

in legal services charges, which are for printing, assembling, service, and/or delivery of documents and items, as well as subpoena services. Defendant argues these fees were merely convenient, as the services could have been performed by staff without incurring the charges.

Plaintiff, in opposition, contends

there are invoices provided with the memorandum of costs, and all of the costs were actually incurred. Plaintiff argues there is no authority for the position that services that COULD be performed by legal staff must be so performed, even if it would cost more than having an outside vendor perform the services.

Plaintiff's attorney's declaration

is silent concerning the legal services charges. The Court finds Plaintiff failed to meet her burden to show these charges were reasonably necessary, as opposed to merely convenient or beneficial. Once Defendant so challenged the costs, it was Plaintiff's burden to provide evidence, as opposed to argument, to support her position. She failed to do so. Notably, the invoices themselves do not speak to the necessity (as opposed to convenience) of the claimed fees. This is in contrast to the expert invoice, which clearly details exactly what services the expert performed, which the Court can conclude were reasonable by their mere description. The motion to tax these costs is granted.

b. Court

Reporter Fees

Plaintiff seeks to recover

\$18,284.60 for court reporter fees to have a reporter present at various hearings and trial. The Court finds court reporter costs are not merely convenient or beneficial as a matter of law; they are reasonably necessary because they preserve the record for appeal. The motion to tax these costs is denied.

c. Attorney

Travel Expenses

Plaintiff seeks to recover \$2568.24 in attorney travel expenses. Defendant establishes Plaintiff's attorneys' firm is based in Los Angeles. The Court finds it was not reasonable for Plaintiff's attorney to travel from Phoenix to Los Angeles to personally appear at hearings. The Court permits (and indeed encourages, on every one of its posted tentative rulings) online appearances. Plaintiff's firm is free to send someone in person from out of state, even though the firm itself is located in Los Angeles, but cannot reasonably expect the other side to pay for the expenses. The motion to tax these costs is granted.

4. Conclusion

The motion to tax costs is granted in part and denied in part as set forth fully above.

The Court notes that Plaintiff has a motion for attorneys' fees on calendar on 11/10/26. The Court asks Counsel to meet and confer in good faith prior to the hearing in an attempt to resolve the issues. The parties must provide meet and confer declarations, with specific details concerning the attempts, with the opposition and reply papers if the hearing on the motion goes forward.

Defendant is ordered to give notice.